

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF ASKEROV AND OTHERS v. RUSSIA

(Applications nos. 1712/20 and 20 others –
see appended list)

JUDGMENT

STRASBOURG

23 March 2023

This judgment is final but it may be subject to editorial revision.

COUNCIL OF EUROPE
CONSEIL DE L'EUROPE

In the case of Askerov and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by Memorial Human Rights Centre, a non-governmental organisation practicing in Moscow.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the disproportionate measures taken against them as participants of public assemblies, namely the manifestations for fair elections to the Moscow City Parliament in summer 2019 in Moscow. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interference with the applicants' freedom of assembly was not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23, 10 April 2018; *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of the organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, related to examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

IV. REMAINING COMPLAINTS

14. The applicants further raised additional complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings. In view of the above findings, the Court considers that there is no need to deal separately with these remaining complaints.

15. The applicants in applications nos. 8167/20 and 8198/20 also raised complaints under Article 3 of the Convention. The Court considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see, recently, *Savelov and Others v. Russia* [Committee], nos. 62815/10 and 5 others, 1 December 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the dispersal of the public assemblies and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that there is no need to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative offence proceedings, and *declares* the remainder of applications nos. 8167/20 and 8198/20 inadmissible;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assemblies;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 23 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lətif Hüseynov President

APPENDIX

List of applications raising complaints under Article 11 of the Convention (disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Date of the manifestation for fair elections in Moscow	Administrative charges	Penalty	Final decision: Moscow City Court, Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	1712/20 27/12/2019	**Elmir Akper ogly ASKEROV** 1994	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	18/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.40 p.m. on 03/08/2019 to 2.00 a.m. on 04/08/2019; the applicant remained in detention even after the record had been completed; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/10/2019.	4,000
2.	1801/20 18/12/2019	**Konstantin Sergeyevich LEVIN** 1992	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	26/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.50 p.m. on 27/07/2019 to 00.15 a.m. on 28/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 26/08/2019.	4,000
3.	1823/20 27/12/2019	**Nikolay Anatolyevich NIKULSHIN** 1991	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	02/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 11.30 p.m. on 03/08/2019;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Date of the manifestation for fair elections in Moscow	Administrative charges	Penalty	Final decision: Moscow City Court, Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
							Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 02/10/2019.	
4.	7023/20 30/12/2019	**Bogdan Igorevich SHUMSKIY** 1992	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 12,000	04/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 11.00 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2019.	4,000
5.	8167/20 29/01/2020	**Konstantin Yuryevich ZHAROV** 1974	27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	30/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.00 p.m. on 27/07/2019 to 12.30 a.m. on 29/07/2019, until the hearing on the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/10/2019.	4,000
6.	8198/20 29/01/2020	**Grigoriy Iosifovich KLEMENTYEV** 1974	27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	16/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.00 p.m. on 27/07/2019 to 10.00.p.m on 29/07/2019, till the hearing in the applicant's administrative-offence case;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Date of the manifestation for fair elections in Moscow	Administrative charges	Penalty	Final decision: Moscow City Court, Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
							Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 16/10/2019.	
7.	8319/20 03/02/2020	**Dmitriy Aleksandrovich GALKIN** 1994	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 12,000	08/10/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 08/10/2019; Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.00 p.m. on 27/07/2019 to 00.25 a.m. on 28/07/2019, while the record had been drawn up only on 30/07/2019.	4,000
8.	8324/20 03/02/2020	**Maksim Anatolyevich STROKOV** 1990	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	04/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.30 p.m. on 27/07/2019 to 04.20 a.m. on 28/07/2019, while the record had been drawn up only on 02/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2019.	4,000
9.	8333/20 03/02/2020	**Maksim Olegovich YAKOVLEV** 1985	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	28/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.10 p.m. to 11.10 p.m. on 27/07/2019;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Date of the manifestation for fair elections in Moscow	Administrative charges	Penalty	Final decision: Moscow City Court, Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
							Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/08/2019.	
10.	10255/20 13/02/2020	**Sergey Vladimirovich KUOK (former KULIKOV)** 1968	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	12/11/2019	Art. 5 (1) – escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. to 6.00 p.m. on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/11/2019.	4,000
11.	10262/20 13/02/2020	**Maksim Olegovich MASHKOV** 1980	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	22/11/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.40 p.m. to 20.40 p.m. on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 22/11/2019.	4,000
12.	12149/20 27/02/2020	**Mikhail Yuryevich GAMOV** 1970	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	04/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.25 p.m. on 03/08/2019 to 02.30 p.m. on 04/08/2019; the applicant remained in detention even after the record had been completed;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Date of the manifestation for fair elections in Moscow	Administrative charges	Penalty	Final decision: Moscow City Court, Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
							Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/09/2019.	
13.	14030/20 28/02/2020	**Aleksandr Mikhaylovich ALEKSANIN** 1982	03/08/2019	Article 20.2 § 2 of CAO	fine of RUB 20,000	28/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. on 03/08/2019 to 01.00 p.m. on 04/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/08/2019.	4,000
14.	24876/20 22/06/2020	**Olesya Nikolayevna YELFIMOVA** 1983	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	04/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.25 p.m. on 27/07/2019 to 00.45 p.m. on 28/07/2019; the applicant remained in detention even after the record had been completed; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2019.	4,000
15.	25283/20 23/06/2020	**Pavel Germanovich MILOVIDOV** 1988	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	26/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.30 p.m. to 6.20 p.m. on 27/07/2019;	4,000

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							Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 26/09/2019.	
16.	25316/20 23/06/2020	**Dmitriy Pavlovich ASAVKIN** 1991	27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	26/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.20 p.m. on 27/07/2019 to 03.00 p.m. on 29/07/2019, until the hearing on the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 26/09/2019.	4,000
17.	25904/20 22/06/2020	**Dmitriy Yuryevich KHARITONOV** 1975	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	22/11/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.40 p.m. on 27/07/2019 to 03.00 a.m. on 28/07/2019, while the record had been drawn up only on 01/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 22/11/2019.	4,000
18.	25937/20 22/06/2020	**Matvey Gennadyevich KURZUKOV** 1994	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	22/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.50 p.m. on 27/07/2019 to 00.15 a.m. on 28/07/2019; the applicant spent 5 hours in a police van before having been brought to the police station;	4,000

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							Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 22/10/2019.	
19.	27977/20 25/06/2020	**Mikhail Igorevich ROSHCHIN** 1994	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	26/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.30 p.m. to 9.50 p.m. on 27/07/2019, while the record had been drawn up only on 02/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 26/09/2019.	4,000
20.	28314/20 03/07/2020	**Maksim Viktorovich KRAVCHUK** 1989	27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	18/12/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.40 p.m. to 7.00 p.m. on 27/07/2019, while the record had been drawn up only on 02/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/12/2019.	4,000
21.	32080/20 23/07/2020	**Dmitriy Sergeyevich MALOV** 1989	27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	28/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.15. p.m. on 27/07/2019 to 2.15 p.m. on 29/07/2019; the applicant remained in detention even after the record had been completed;	4,000

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							Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/10/2019.	

[1] Plus any tax that may be chargeable to the applicants.